

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

CHRISTOPHER CAROLINA,

Plaintiff,

- against -

THE CITY OF NEW YORK, JOSEPH
McEVOY, Shield 14582 Tax ID 944790, JOHN
DOE 1-3, the names being fictitious and
currently unknown, employees of the New York
City Police Department,

Defendants.

-----X

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer on the plaintiff's attorney within twenty days after the service of this Summons, exclusive of the day of service (or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

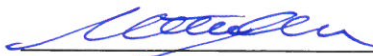
Dated: October 4, 2016
Brooklyn, New York

Defendants' Address:
CITY OF NEW YORK
100 Church Street
New York, New York

JOSEPH McEVOY
73rd Precinct
1470 East New York Ave
Brooklyn, New York 11212

John Doe 1-3
One Police Plaza
New York, New York

Rubert & Gross
150 Broadway, Suite 712
New York, New York 10038
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608 3103


By: Matthew Flamm

Notice: The nature of this action is for civil rights violations under the United States Constitution and for New York State common law claims arising from the arrest and attempted prosecution of plaintiff on February 8, 2015 and July 7, 2015.

Upon your failure to appear, judgment will be taken against you by default for the sum sought with interest from February 8, 2015 or July 7, 2015 respectively.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

CHRISTOPHER CAROLINA,

Plaintiff,

VERIFIED COMPLAINT

Index No.

- against -

THE CITY OF NEW YORK, JOSEPH McEVOY,
Shield 14582 Tax ID 944790, JOHN DOE 1-3, the
names being fictitious and currently unknown,
employees of the New York City Police Department,

Defendants.

-----X

Christopher Carolina, by his attorneys, Rubert & Gross, PC, alleges the following, upon
information and belief, as his Complaint:

Nature of the Action

1. This civil rights action arises from the February 8, 2015 and July 7, 2015
automobile stops by defendants, and the arrest and attempted prosecution of Christopher
Carolina. Plaintiff seeks compensatory and punitive damages for violation of his civil rights
under 42 U.S.C. §1983.

Parties

2. Plaintiff CHRISTOPHER CAROLINA is a citizen of the United States of
America residing in the State of Vermont.

3. Defendant The CITY OF NEW YORK is a municipal corporation duly
incorporated and existing under the laws of New York State. Pursuant to its Charter, New York
City has established and maintains a Department of Police as a constituent department or agency.
At all times relevant, the City of New York employed the police officers involved in the
incidents underlying this lawsuit.

4. Defendant JOHN McEVOY was on February 8, 2015 and at all times relevant a duly appointed and acting employee of the New York City Police Department and assigned, upon information and belief, to the 73rd Precinct in Brooklyn, New York. He is sued in his individual capacity.

5. Defendant JOHN DOE 1 was on February 8, 2015 and at all times relevant a duly appointed and acting employee of the New York City Police Department and assigned, upon information and belief, to the 73rd Precinct in Brooklyn, New York. He was defendant McEvoy's partner on February 8, 2015. He is sued in his individual capacity.

6. Defendants JOHN DOE 2-3 were on July 7, 2015 and at all times relevant employed by the New York City Police Department and assigned, upon information and belief, to 73rd Precinct. Defendants DOE 2 (Male Hispanic approximately 6'2") and 3 (Male African American approximately 6'5" and slim) are sued in their individual capacity.

7. At all times relevant, defendants McEVOY, JOHN DOE 1, JOHN DOE 2, and JOHN DOE 3 (the "individual defendants"), and other police personnel involved in the incidents underlying this lawsuit were acting under color of state law.

8. The individual defendants and other police personnel involved in the incidents underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by the City of New York.

Notice of Claim

9. On or about August 20, 2015, and within ninety days after claims arose on July 7, 2015, plaintiff filed a Notice of Claim upon defendant the City of New York, by

delivering copies thereof to the person designated by law as a person to whom such claims may be served.

10. The Notice of Claim was in writing and was sworn to, and contained the name and post office address of the plaintiff.

11. The Notice of Claim set out the nature of the claims, the time when, the place where and manner by which the claims arose, and damage and injuries claimed to have been sustained.

12. The Comptroller assigned 2015PI026660 as the claim number.

13. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

14. This action was commenced within one year and ninety days after the happening of the events upon which the claims are based.

Facts Underlying
Plaintiff's Claims for Relief

The February 8, 2015 Incident

15. Beginning on February 8, 2015 between 7-9 p.m. at and around 330 Dumont Avenue in Brooklyn, New York, Police Officers employed by the City of New York, including Joseph McEvoy, unlawfully stopped, arrested, imprisoned, and thereafter attempted to prosecute Mr. Carolina on the false charge of criminal possession of a weapon.

16. At that time and place, Mr. Carolina was lawfully parking his automobile on Dumont Avenue.

17. Two plainclothes officers in an unmarked car, defendants McEvoy and Doe 1, stopped plaintiff, ordered him from the auto, and repeatedly searched him and the automobile without consent or reasonable basis to believe that any crime had been committed.

18. During defendants' Doe and McEvoy's unlawful search of the automobile, the officers found a utility knife in the central console.

19. Despite that Mr. Carolina had done nothing unlawful, he was nonetheless handcuffed,

20. Mr. Carolina was taken to the 73rd Precinct Stationhouse. The arrest was assigned Arrest No. K15669063.

21. Defendants did not have lawful justification to stop, detain, search, or arrest.

22. While Mr. Carolina was imprisoned, defendant McEvoy and others, in an attempt to have Mr. Carolina prosecuted, prepared or allowed to be prepared false police reports accusing Mr. Carolina of criminal possession of a weapon.

23. The individual defendants and others caused and allowed false statements to be filed with and made to the Kings County District Attorney's Office.

24. Defendants imprisoned plaintiff for approximately twelve hours before releasing him with a Desk Appearance Ticket falsely charging him with possession of a weapon.

25. Mr. Carolina appeared in Court on April 1, 2015 as ordered to do so by the D.A.T. and was told that the case was not on the Court's calendar. The Kings County District Attorney had reviewed the allegations and evidence and had declined to prosecute the matter.

26. Mr. Carolina suffered the emotional upset, fear, and trauma of, among other things, being unlawfully arrested, searched, handcuffed, and ordered to Court for prosecution. His constitutional rights were violated.

27. Additionally, defendant McEvoy took and did not return plaintiff's Department of Education identification card, and Mr. Carolina was unable to engage in his customary work at the Board of Education pending disposition of the prosecution. Because the matter was an undocketed arrest, and there was no Certificate of Disposition, it was not until the District Attorney issued a "decline to prosecute" letter that Mr. Carolina was able to attempt to obtain a replacement ID from the Department of Education.

The July 7, 2015 Incident

28. Beginning on July 7, 2015 at approximately 7:30 p.m. on Lott Avenue between Amboy and Herzl Streets in Brooklyn, New York, Christopher Carolina was lawfully operating his motor vehicle when defendants John Doe 2 and 3 stopped, detained, and questioned plaintiff without lawful basis.

29. Mr. Carolina was ordered from the automobile and John Doe 2 unlawfully searched plaintiff.

30. John Doe 2 and John Doe 3 unlawfully searched the automobile, damaging, among other things, the front central console armrest, rear center headrest, and the rear center storage compartment.

31. The officers released Mr. Carolina without issuing a summons after approximately fifteen minutes.

32. Defendants had no lawful justification to stop, detain, or search.

33. Mr. Carolina suffered the emotional upset and fear of, among other things, being unlawfully stopped, detained, and searched. His constitutional rights were violated. The unlawful search caused approximately \$350 in property damage before considering labor costs.

34. The four individual defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the unlawful stops, searches, detentions, arrest, and attempted prosecution of Mr. Carolina.

35. The acts and omissions caused Mr. Carolina to suffer loss of liberty, physical discomfort, mental and emotional upset, fear, humiliation, and deprivation of his constitutional rights, among other injuries.

36. The individual defendants, at all times relevant, and in, stopping, detaining, searching, and/or arresting and jailing Mr. Carolina, and/or in offering false evidence to the District Attorney and Criminal Court Judges, acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to plaintiff's rights and physical and mental well-being.

FIRST CAUSE OF ACTION FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

37. Plaintiff repeats and realleges the forgoing paragraphs allegation as if fully set forth herein.

38. By the actions described above, individual defendants deprived Mr. Carolina of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free and secure in his person and his right to be free from

arrest or search, except on probable cause or pursuant to warrant, and his right to be free from stop and detention without reasonable suspicion.

39. As a consequence thereof, Christopher Carolina has been injured.

SECOND CAUSE OF ACTION FOR FALSE ARREST

40. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

41. By reason of the foregoing, on July 7, 2015, plaintiff was intentionally confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely arrested.

42. As a consequence thereof, Christopher Carolina has been injured.

THIRD CAUSE OF ACTION FOR ASSAULT

43. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

44. By the actions described above, on July 7, 2015, plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

45. As a consequence thereof, Christopher Carolina has been injured.

FOURTH CAUSE OF ACTION FOR BATTERY

46. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

47. By the actions described above, on July 7, 2015, plaintiff was intentionally touched in a harmful and offensive manner.

48. As a consequence thereof, Christopher Carolina has been injured.

FIFTH CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

49. Plaintiff repeats and realleges the forgoing paragraphs allegation as if fully set forth herein.

50. The individual defendants were present during the conduct to which Mr. Carolina was subjected, had a reasonable opportunity prevent or end the conduct, and nonetheless failed to intervene to prevent, end, or truthfully report the unlawful conduct to which Mr. Carolina was subjected.

51. As a consequence thereof, Christopher Carolina has been injured.

SIXTH CAUSE OF ACTION FOR NEGLIGENCE

52. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.

53. The acts of July 7, 2015 complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to screen, assign, train, supervise, monitor, or discipline its law enforcement personnel, including assigning, training, supervising, monitoring, or disciplining individual Police personnel who unlawfully stop, detain, search, and damage property.

54. The defendant City of New York's failure properly to assign, train, supervise, monitor, or discipline its Police, including the Police personnel involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional stops, detentions, and arrests, and

allowed the individual defendants to believe that they could with impunity detain and abuse Mr. Carolina.

55. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the defendants John Doe 2 and John Doe 3 violate arrestees' constitutional rights and were and are potentially dangerous.

56. Defendant City's negligence in screening, hiring, training, disciplining, and monitoring proximately caused plaintiff's injuries.

57. As a consequence thereof, Christopher Carolina has been injured.

Request for Relief

WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

- (A) Compensatory damages in an amount to be fixed at trial;
- (B) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages in an amount to be fixed at trial;
- (C) An award to plaintiff of the costs and disbursements herein;
- (D) An award of attorney's fees under 42 U.S.C. §1988; and
- (E) Such other and further relief as this Court may deem just and proper.

Dated: October 4, 2016
New York, New York

Rubert & Gross, PC
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608-3103
Fax: (212) 608-1316



By: Matthew Flamm

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

CHRISTOPHER CAROLINA,

Plaintiff,

VERIFICATION

Index No.

- against -

THE CITY OF NEW YORK, JOSEPH McEVOY,
Shield 14582 Tax ID 944790, JOHN DOE 1-3, the
names being fictitious and currently unknown,
employees of the New York City Police Department,

Defendants.

-----X

MATTHEW FLAMM, an attorney admitted to practice in the State of New York,
affirms the following to be true under the penalty of perjury pursuant to Civil Practice Law
and Rules Section 2106.

I am associated with Rubert & Gross, PC, the attorneys for plaintiff herein. I have
read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same is true
to my own knowledge, except as to matters therein stated to be alleged upon information and
belief, and as to those matters, I believe them to be true. The reason this verification is
made by me and not Christopher Carolina is that he does not reside in the county in which I
have my office. CPLR §3020((d)(3).

Dated: October 4, 2016
New York, New York


Matthew Flamm